

1. S-PR-0003108 In Re the Conservatorship Of Wagner, Cody Harold

Conservator 10th and 11th accounts are recommended for approval as prayed. It is further recommended the court order joint conservator John Wagner to show cause why he should not be removed as joint conservator.

It is further recommended the court order conservator to show cause why the 12th account should not be ordered filed forthwith as it is now significantly overdue.

2. S-PR-0012041 In Re the Conservatorship of Clagg, David L.

2d conservatorship account is recommended for approval as prayed.

3. S-PR-0013478 In Re the Conservatorship of Andres, Nimfa Enriquez

Petition for attorney fees is recommended for approval as prayed.

4. S-PR-0013706 In Re the Conservatorship of Elkins, Katherine

Petition for attorney fees is recommended for approval as prayed.

5. S-PR-0013723 In Re the Conservatorship of Diestler, Brian Michael

Ex parte application to modify court order nunc pro tunc

It is recommended the request for modified order be denied.

The court order filed December 12, 2025, accurately reflects the hearing information for the amended conservatorship petition, which was heard and granted December 12, 2025. Applicant offers no explanation for why he believes an order should state that the hearing date was October 31, 2025. Although there was a hearing held October 31, conservatorship was not granted at that time. (Indeed, the amended petition was not even filed until November 25, 2025.) Instead, the matter was continued to afford petitioner time to address outstanding calendar notes and to allow the court to notify counsel of her appointment to represent proposed conservatee.

Further, the court's December 12, 2025, order appropriately omits any proposed Attachment 29. The amended conservatorship petition does not request any expanded investment powers such as those described in proposed Attachment 29. While petitioner prayed for unspecified Prob.C. §§ 2590–2591 powers (see Amended Petition, ¶ 1d), no Attachment 1d was included specifying any request powers or making the required good cause showing for each requested power. Nor were additional orders were requested under ¶ 1l. The Attachment 29 orders were not requested and were not made. It appears a noticed petition is required to seek expanded investment powers.

These calendar notes are not a tentative ruling on the merits of the ex parte application. They are provided to assist the parties and the court to prepare for the hearing.

Petition for substituted judgment

Appearance is required for hearing on petition for substituted judgment.

Missing notice of hearing. Missing service of notice of hearing to conservatee, all second-degree relatives of conservatee, and counsel for conservatee. Prob.C. §§ 2581 & 1214.

Missing needed allegations as to whether conservatee opposes the petition. Prob.C. § 2582(a).

Clarification is needed: the proposed trust has already been executed. The court has not granted any substituted judgment order authorization the creation of a trust.

Clarification is needed. the trust identifies settlors as Dennis Diestler and Deborah Dieslter, the parents of conservatee, and that the trust will be a 3d-party special needs trust. The substituted judgment special needs trust will be settled, only after court order, by *conservator* Brian Diestler only. The anticipated trust will be funded entirely with conservatee's assets, making it a 1st-party special needs trust.

Revisions are needed: the proposed special needs trust includes numerous provisions which violate the requirements of C.R.C. 7.903 or otherwise require revision, contrary to numerous verified statements in the petition, as follows:

- § 4.05 impermissibly grants discretion to trustee to terminate the trust in derogation of C.R.C. 7.903(c)(3);
- § 5.07(b) permits "any kind of property or type of investment" without regard to the limitations of Prob.C. § 2574 or the limited request for expanded investment powers requested in the petition at ¶ 18, in derogation of C.R.C. 7.903(c)(4); § 5.07(d) also appears to permit investments not allowed under Prob.C. § 2574;
- § 5.05 impermissibly waives bond in derogation of C.R.C. 7.903(c)(5);
- § 5.14 insufficiently specifies the "persons" to whom a trust account is required, and the manner in which it is to be rendered; further, the account frequency required by Prob.C. § 2620 et seq. is not annual, as indicated; see C.R.C. 7.903(c)(6); revision is needed;
- § 5.06 impermissibly allows trustee fees without court approval, and does not require court approval of attorney fees, in derogation of C.R.C. 7.903(c)(8).

Conservator response is needed: conservator should be prepared to show good cause for the power requested in proposed trust § 5.07(m) to hold estate property in trustee's individual name or in the name of nominees without disclosing the existence of the trust.

Other issues

On the court's own motion, conservator shall appear and shall request an increase in bond. Conservator's inventory and appraisal clearly shows that bond is inadequate, and conservator was immediately required to request a bond increase. C.R.C. 7.204(a). Based on the inventory and appraisal values and assuming no income, bond of at least \$993,186.23 is required under C.R.C. 7.207 and should be ordered. With income added, the needed bond amount will increase. To the extent a substituted judgment trust is created and funded with all conservatorship property, the same bond calculation will apply to trustee. See C.R.C. 7.903(c)(5).

6. S-PR-0013753 In Re the Conservatorship of Hall, Alan

Appearance is required for hearing on petition for authorization to sell residence. Clarification is needed: conservator should clarify whether the request relief is intended to include authorization to sell the residence without a later court confirmation of sale petition.

7. S-PR-0013772 In Re the Conservatorship of Minnick, Bane Stone

No appearance is required for conservatorship review hearing. All needed post-appointment filings appear to have been filed and served as required. Court investigator will complete an annual review according to standard court practices.

8. S-PR-0013911 In Re the Conservatorship of Northern, Barry Wayne

Missing notice of hearing for petition for attorney fees. Missing service of notice of hearing.

9. S-PR-0014125 In Re the Conservatorship of Duerst, Anthony

Appearance is required for continued hearing on petition for appointment of limited conservator of the person.

Missing amended petition referred to in response to calendar notes.

Missing sufficient citation. The only citation issued by the clerk was for an anticipated hearing on June 5; no such hearing occurred. Adequate citation and 15 days' personal service to proposed conservatee are needed. Note: service to counsel is insufficient (Prob.C. § 1214; C.R.C. 7.51(a)(1)-(2) & (b)), and 2d-degree relatives do not need to be served with the citation.